

Court No. - 29

Case :- WRIT - C No. - 35843 of 2016

Petitioner :- Shyam Kumar Awasthi

Respondent :- U.P.P.C.L. And 3 Others

Counsel for Petitioner :- Anand Mohan Pandey

Counsel for Respondent :- Baleshwar Chaturvedi, Suman Kumar Yadav

Hon'ble Tarun Agarwala, J.

Hon'ble Vipin Sinha, J.

Heard learned counsel for the parties.

The provisional bill of Rs. 82,451/- has been issued pursuant to a checking report wherein theft of electricity was found. If the petitioner has any objection to the provisional bill, the remedy available to the petitioner is to file a reply under Section 126 of the Electricity Act, 2003 and under Section 8.5 of the Electricity Supply Code, 2005.

If such an objection is filed in the form of a notice as has been done in the present case (annexure no. 3), it shall be considered by the concerned Executive Engineer and thereafter an appropriate assessment order will be passed.

The writ petition is, accordingly, **disposed off.**

Order Date :- 3.8.2016

Anand

(Vipin Sinha, J.)

(Tarun Agarwala, J.)